

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NKOSI SOLOMON,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER STARK, TAX ID 961325,
OF THE 73RD PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICERS JOHN, JIM, JOE AND JAMES
DOE, (FICTITIOUS NAMES BECAUSE THEIR IDENTITY
IS CURRENTLY UNKNOWN), ALL OF THE 73RD PCT.,
INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Kings
County as the place of trial.
The basis of the venue is that
Kings County is the place
where the cause of action
arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 24, 2020

/s/ ROYCE RUSSELL

Royce Russell
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street #18 Flr.
New York, New York 10120
(718) 785-8890

Defendants' address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Stark
Tax ID # 961325
c/o 73rd Precinct
1470 E. New York Avenue
Brooklyn, NY 11212

Police Officer John Doe
(Fictitious name because his identity is unknown)
c/o 73rd Precinct
1470 E. New York Avenue
Brooklyn, NY 11212

Police Officer Jim Doe
(Fictitious name because his identity is unknown)
c/o 73rd Precinct
1470 E. New York Avenue
Brooklyn, NY 11212

Police Officer Joe Doe
(Fictitious name because his identity is unknown)
c/o 73rd Precinct
1470 E. New York Avenue
Brooklyn, NY 11212

Police Officer James Doe
(Fictitious name because his identity is unknown)
c/o 73rd Precinct
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Defendants.

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The Plaintiff, Nkosi Solomon, by his Attorney, R-SQUARE, ESQ., PLLC., complaining
of the defendants respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, specifically on the 31st day of December, 2019, at approximately 8:00 p.m., Police Officers Stark, Tax ID# 961325, hereinafter referred to as "Stark," and John, Jim, Joe, and James Doe, hereinafter referred to as "John, Jim, Joe, and James", collectively referred to as the "Officers/Defendants," each of the 73rd Pct., were employed by the defendant, "CITY," and/or "NYPD" as Police Officers, and were assigned to the 73rd Pct. and at all times hereinafter mentioned acted in the capacity of police officers. Each sued individually and as police officers.
4. Upon information and belief, all named Police Officers Stark, John, Jim, Joe and James are all police officers who were screened, interviewed, hired by the "City", trained by the

“City”, was retained by the “City”, monitored, supervised and/or disciplined by the “City” and on December 31, 2019 was employed and working in their scope of employment and pursuant to the NYPD Police Patrol Guidelines.

5. That the Plaintiff, Nkosi Solomon, hereinafter referred to as “Solomon/Plaintiff,” is a resident of Kings County and timely filed and served a Notice of Claim on the City.
6. The City acknowledged receipt of the notice of claim and a 50 (h) hearing of the Plaintiff was conducted on or about October 20, 2020.
7. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustments or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.
9. Upon information and belief, at all times hereinafter mentioned, and specifically on the 31st day of December, 2019, at approximately 8:00 p.m., Solomon was falsely arrested by the named Officers.
10. On or about December 31, 2019 at approximately 8:00 p.m., Solomon was lawfully at the location of 379 Grafton Street and/or 345 East 98th Street, Brooklyn, New York 11212 within the State of New York making a purchase at the local wine and spirits store, Lem Liquor store.
11. Solomon, while waiting for his purchase, exited the store and began talking to the owner of Lem Liquor and other acquaintances from the neighborhood. During this time, he observed Starks, John, Jim, Joe, and James drive and stop at the area where he and others were standing and talking.
12. Upon the Defendants/Officers arrival, Solomon and others began to separate. Solomon began to walk into Lem Liquor to retrieve his purchase. As Solomon was entering Lem Liquor, he heard someone say “Hey you”. Solomon ignored the statement because he believed no one was talking to him given the number of people outside at the location.
13. Solomon continued to walk into Lem’s when Starks ran in front of him and said “Where are you going?” and pushed Solomon in the chest for which Starks fell backwards.
14. Starks then forcibly pushed Solomon, with two hands in his chest, through a glass plated window.

15. Starks then grabbed Solomon from the broken window frame and with other officers stood Solomon up only to then slam him onto the concrete ground outside of Lem's and handcuffed the Plaintiff.
16. Starks, John, Jim, Joe and James kneed, kicked and struck Solomon about the body as he laid on the concrete ground. Defendants illegally searched Solomon and transported him to the 73rd Precinct.
17. During his transport, Solomon continuously asked why he was being arrested.
18. The Defendants replied that he pushed an officer, for which Solomon responded that is a "Lie".
19. Once at the 73rd Pct., Solomon was illegally searched again and placed into a holding cell. During this time, Solomon continued to ask why he was being arrested, for which he was told he would not be processed and would receive a Desk Appearance Ticket (DAT).
20. Solomon eventually received the DAT but was not free to leave as he was then interrogated by other named Defendants who stated they were from the Prevention Team. The Defendants questioned Solomon about being in a gang or having any gang affiliations.
21. Solomon stated he does not belong to any gang or has any affiliations with gangs. Solomon was then asked if he knew why he was arrested, for which he responded "No". Solomon was never informed why he was arrested.
22. Solomon was issued a DAT and released after approximately being held unlawfully for three (3) hours. As a result of the Defendants' actions, Solomon was forced to seek medical attention.
23. Solomon was forced to appear in Court whereupon the case was dismissed.
24. The arrest, imprisonment, and the physical contact were all without just cause, provocation, and said actions were offensive to Solomon, unprivileged and without his consent. Solomon was maliciously prosecuted as his case was dismissed.
25. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.
26. The City of New York, their agents, servants or employees intended to confine Solomon; Solomon was conscious of said confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and

without grounds therefore.

27. The arrest, imprisonment, and physical contact were all without just cause, provocation, and said actions were excessive, offensive to Solomon, unprivileged and without his consent.
28. The City, their agents, servants and employees as aforementioned committed battery and assault upon Solomon, without just cause or justification, and in an excessive manner and force, intentionally caused physical contact, causing serious injuries to Solomon's mind and body. Solomon was aware of the threat of imminent harm and unconsented contact and actually feared it while the Officers had the apparent ability to cause said unlawful and unconsented contact and harm and actually caused it to occur.
29. The Defendants violated the Plaintiff's Civil Rights under 42 USCS §1983 and 28 USCS §§ 1331 and 1343, in that the Plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused the Plaintiff to be so deprived as stated in this Complaint, and in that Defendants, their agents, servants or employees illegally stopped the Plaintiff, illegally seized and arrested the Plaintiff absent any justifiable reason for doing so; conspired to deprive the Plaintiff of due process and equal protection under the law, including the suppression of exculpatory information; maliciously prosecuted the Plaintiff; and further violations of Plaintiff's rights and privileges secured to him under the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused Plaintiff to be so deprived of his rights, privileges and immunities secured to him under the Constitution of the United States and the State of New York.
30. The Defendants were negligent in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer or officers would have used under similar circumstances, in permitting the police officers to continue to perform their duties in an improper, negligent, careless and reckless manner all without any negligence on the part of the Plaintiff contributing thereto.
31. The Defendants "City" and/or "the NYPD" were negligent in supervising, monitoring, assigning, reviewing, disciplining and promoting the subject officers.
32. Plaintiff, Solomon was and is, at all times innocent of all charges and had committed no crime.
33. That this action falls within one of the exceptions of CPLR §1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

34. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully and at length set forth herein.
35. That beginning on or about the 31st day of December, 2019, at the approximate hour of 8:00 p.m., the Defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without any just cause or grounds therefore and held him against his will under full force of arms.
36. That said imprisonment was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or any cause to believe that the Plaintiff was guilty of any crimes, or that the Defendants had just cause to imprison the Plaintiff, given the Defendant/Officers did not observe Solomon commit any crimes.
37. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest or imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
38. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; in that the Plaintiff was conscious of his confinement; the Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
39. That by reason of the aforesaid false imprisonment and detention of the Plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.
40. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That on the 31st day of December, 2019 at approximately 8:00 p.m., the Defendant “Officers”, and their agents, servants and/or employees intentionally and knowingly arrested, handcuffed, detained and imprisoned Plaintiff, without any just cause or grounds therefore, and held him against his will under full force of arms until he was released at least three hours later receiving a Summon/Desk Appearance Ticket.
43. That the Plaintiff was falsely arrested, imprisoned and accused by the Defendants, their agents, servants and/or employees.
44. That said arrest was caused by the Defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the Plaintiff was guilty of any crime. That said false arrest was also caused by Defendants, without any reasonable grounds or cause to believe that the Plaintiff was guilty of any crime.
45. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the Defendants, their agents, servants and/or employees and he was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
46. The Defendants, their agents, servants and/or employees, as well as Defendants Starks, John, Jim, Joe and James as set forth above, intended to seize, handcuff and arrest the Plaintiff; the Plaintiff was conscious of his arrest and confinement; the Plaintiff did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.
47. That by reason of the aforesaid false arrest and false charges filed against him, the Plaintiff was subjected to great indignity, humiliation, and distress of mind and body, and the said Plaintiff has been otherwise damaged.
48. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST
DEFENDANTS STARK, JOHN, JIM, JOE AND JAMES
FOR BATTERY AND ASSAULT

49. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “48” with the same force and effect as if fully set forth

herein.

50. Upon information and belief, on or about the 31ST day of December, 2019, commencing at the approximate hour of 8:00 p.m. the Defendants, while acting within the scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation searched, and handcuffed the Plaintiff.
51. That all said contact was committed without the Plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery and assault to the Plaintiff.
52. That said acts occurred within the scope of the police officers' employment with the "City".
53. That by reason of the aforesaid intentional battery, and assault, the Plaintiff suffered and still continues to suffer from emotional trauma, and that he was otherwise damaged.
54. That by reason of the aforesaid battery, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if fully set forth herein.
56. That Defendants "City" and "NYPD", respectively, were careless and reckless in hiring, retaining, assigning, training, failing to re-train, monitoring, supervising and promoting as and for its employees, Defendants "Officers" in that said employment(s) lacked the experience, deportment and the ability to be employed by the Defendants in the capacity in which they were utilized, i.e. police officers and/or employees; in that the defendants "City" and/or "NYPD", respectively, failed to exercise due care and caution in its hiring and promoting practices; in that the defendants "City" and/or "NYPD", respectively, failed to investigate the above named employees' backgrounds; in that the Defendants "City" and/or "NYPD", respectively, failed to properly train, supervise and monitor the "Officers"; in that the Defendant "City" and/or "NYPD", respectively, were negligent in disciplining, retaining and retraining the named defendant "Officers"; and in that the Defendants, their agents, servants and employees were otherwise careless, negligent and

reckless.

57. That upon information and belief, the “City” by and through its agents had received numerous civilian complaints and/or lawsuits against defendants “Officers” and/or the 73rd Pct. that they were assigned to prior to their seizure, search, discourtesy, falsification of evidence and battery/assault of the Plaintiff on December 31, 2019.
58. That the “City” failed to properly retrain said “Officers,” negligently continued to employ said “Officers,” negligently retained the Defendants despite evidence of their police misconduct and continued to assign said officers to act in their capacities as police officers without proper supervision, training and discipline.
59. That the “Defendants/Officers” while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of their police duties as a reasonable prudent and careful police officer would have used under similar circumstances, in that each was negligent, careless and reckless in the manner in which they investigated and/or performed their police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or conducted the false arrest and/or permitted the submission of false documentation by these and other officers; and in that the defendants “Officers,” their agents, servants and/or employees were otherwise careless, reckless and negligent.
60. That by reason of the aforesaid, the Plaintiff was imprisoned, lost his freedom, and stressed, and he was thereby damaged.
61. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST
THE DEFENDANTS FOR MALICIOUS PROSECUTION

62. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and effect as if more fully and at length set forth herein.
63. The Defendants filled out false police reports and issued a DAT to the Plaintiff for the purpose of prosecuting him for the charge that they knew he did not commit.

64. The Defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that he sustained at the hands of the police.
65. The Plaintiff was at all times innocent of any crime charged and his case was dismissed for legal insufficient.
66. That due to the malicious prosecution the Plaintiff was caused to be in conveyance.
67. That by reason of the aforesaid malicious prosecution, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SIXTH THROUGH TENTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK**

68. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.
69. That on or about the 31st day of December, 2019 at or about approximately 8:00 p.m. at the "location" the "Officers" were present thereat as part of their regular and official employment as police Officers for the Defendant, "City".
70. Plaintiff was lawfully and properly thereat, when the "Officers" acting as agents, servants and/or employees of the Defendant "City", forcibly stopped, seized and frisked the Plaintiff absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity. When the Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, arrested, searched because he asked questions during his illegal stop and frisk.
71. Upon information and belief, the Officers were required to fill out a stop, question and frisk report or preserved body cam footage.
72. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
73. Defendants failed to activate their respective body cameras to record the stop, frisk and arrest of Solomon.

74. Upon information and belief, the Officers fabricated a reason for searching the Plaintiff.
75. Further, the other named Officers, present at the Plaintiff's arrest, failed to report the false arrest.
76. Likewise, when the Defendants "Officers" were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
77. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning Solomon.
78. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the Plaintiff.
79. That said acts constituted an illegal seizure of the Plaintiff and deprived Plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983 and/or 1986.
80. That said acts constituted acts of cruel and unusual punishment and deprived Plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
81. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
82. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
83. That Plaintiff, as an African American male, was deprived of his right to equal protection under the law and was targeted and his rights violated based upon his race, a violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.

84. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the Plaintiff's right to justice, and to injure him.
85. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
86. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
87. That the Plaintiff's false arrest, battery and assault, violation of his constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.
88. Defendants "Officers" actions on December 31, 2019 were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the Plaintiff.
89. That Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
90. That by reason of the aforesaid, the Plaintiff was deprived of his liberty, lost income, battered, assault injured, and he was damaged.
91. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages,

costs, attorney(s) fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AND FOR AN ELEVENTH THROUGH FIFTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1983, BY POLICE OFFICERS STARK, JOHN, JIM, JOE, AND JAMES IN
THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,
THE PLAINTIFF ALLEGES:**

92. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "91" with the same force and effect as if more fully and at length set forth herein.
93. That at all times hereinafter mentioned, the Defendant "Stark" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
94. That at all times hereinafter mentioned, the Defendants "John, Jim, Joe, and James" each were employed by the Defendant, The City of New York and/or The New York City Police Department and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
95. That at all times hereinafter mentioned, the Defendant "Officers," individually and collectively, were acting pursuant to orders and directives from Defendant, "City".
96. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
97. That the unlawful and illegal conduct of Defendants "Officers" deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- i. The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
 - ii. The right not to be discriminated against based upon the Plaintiff's race, creed, sex, or sexual orientation;
 - iii. The right to Due Process Law;
 - iv. The right to equal protection under the law; and
 - v. The right not to be subjected to cruel and unusual punishment.
98. That by reason of the aforesaid violations such as, seizure of Plaintiff's person, his false arrest and false imprisonment, battery, assault, falsifying evidence, and discrimination, the Defendant Police "Officers" violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1983.
99. That as a direct proximate result of "the Officers" actions Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
100. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
101. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney(s) fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTEENTH THROUGH TWENTIETH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICERS STARK, JOHN, JIM,
JOE AND JAMES IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

102. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "101" with the same force and effect as if more fully and at length set forth herein.

103. That at all times hereinafter mentioned, the Defendant “Stark” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
104. That at all times hereinafter mentioned, the Defendant “John, Jim, Joe and James” each were employed by the Defendant, The City of New York and/or The New York City Police Department and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
105. That at all times hereinafter mentioned, the Defendants “Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant “City”.
106. That during all times hereinafter mentioned, the Defendants “Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
107. That the Defendant “Officers” conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, due process of law and equal protection of the law, to intimidate and threaten, to abuse, to degrade and to batter.
108. That by reason of the aforesaid violations such as, seizure and search of Plaintiff’s person, his false arrest and false imprisonment, battery and assault, falsifying evidence, and discrimination, the Defendant Police “Officers” violated the Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the Officers” and violated 42 U.S.C. §1985.
109. That as a direct proximate result of “the Officers” actions, Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
110. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

111. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney(s) fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TWENTY-FIRST THROUGH TWENTY-FIFTH CAUSES OF ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICERS STARK, JOHN, JIM, JOE, AND JAMES IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

112. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "111" with the same force and effect as if more fully and at length set forth herein.

113. That at all times hereinafter mentioned, the Defendant "Stark" was employed by the Defendant, The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

114. That at all times hereinafter mentioned, the Defendants "John", "Jim", "Joe" and "James" were employed by the Defendant, The City of New York and/or The New York City Police Department and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

115. That at all times hereinafter mentioned, the Defendants "Officers", individually and collectively, were acting pursuant to orders and directives from Defendant, The City of New York.

116. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same, the "Officers" neglected or refused to do so.

117. That the Officers, each of them could have aided or prevented the seizure and search of the Plaintiff's person, the Plaintiff's the battery and false arrest, false imprisonment, the falsifying of evidence, and discrimination. The Defendant Police "Officers" refused or neglected to do so, and thereby violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1986.
118. That as a direct proximate result of "the Officers" actions Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
119. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
120. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, Attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the defendants on the First through Twenty-Fifth causes of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such further relief as to the court seems just and proper.

DATED: New York, New York
December 24, 2020

/s/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street #18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
December 24, 2020

/s/ ROYCE RUSSELL

By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

NKOSI SOLOMOMN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE, DEPARTMENT, POLICE OFFICERS STARK, TAX ID 961325, OF THE 73RD PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICERS JOHN, JIM, JOE, AND JAMES DOE, (FICTITIOUS NAMES BECAUSE THEIR IDENTITY IS CURRENTLY UNKNOWN), ALL OF THE 73RD PCT., INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorney for Plaintiff
112 West 34TH Street Fl. 18
New York, NY 10120
(718) 785-8890

To:	City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Police Officer JOHN DOE c/o 73 rd Precinct 1470 E. New York Avenue Brooklyn, NY 11212	Police Officer JIM DOE c/o/ 73 rd Precinct 1470 E. New York Avenue Brooklyn, NY 11212
	The New York City Police Department 1 Police Plaza New York, New York 10038	Police Officer JOE DOE c/o 73 rd Precinct 1470 E. New York Avenue Brooklyn, NY 11212	Police Officer JAMES DOE c/c 73 rd Precinct 1470 E. New York Avenue Brooklyn, NY 11212

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 24, 2020

Signature

/s/ ROYCE RUSSELL

By: Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on